

INFORMATION OFFICER COMPLIANCE PACK

Proaxis Solutions (Pty) Ltd

Field

Company Name

Registration Number

Information Officer

IO Registration Reference

Document Version

Effective Date

Next Review Date

Classification

⚠ **DISCLAIMER:** This pack was prepared with AI assistance and must be reviewed by a qualified attorney before reliance. All statutory references must be verified against the current Protection of Personal Information Act 4 of 2013, the Promotion of Access to Information Act 2 of 2000, and Information Regulator guidance. This document does not constitute legal advice.

PURPOSE OF THIS PACK

This pack is the operational reference for the Information Officer of Proaxis Solutions (Pty) Ltd. It provides:

- A description of the IO's legal duties and responsibilities;
- Standard operating procedures for handling POPIA and PAIA requests;
- The data breach response procedure;
- Templates for logging and tracking all IO activities;
- A compliance calendar of key deadlines;
- Contact information for the Information Regulator.

This pack must be reviewed annually and updated when legislation, company operations, or personnel change.

PART 1 — INFORMATION OFFICER APPOINTMENT AND REGISTRATION

1.1 Appointment Details

Field	Detail
Information Officer	Andile Khoza
Appointment Authority	Proaxis Solutions (Pty) Ltd — Director
Director	Bongumusa Mthembu [VERIFY: confirm full legal name against CIPC records]
IO Registration Reference	2025-058837
Registered With	Information Regulator of South Africa
Registration Effective	2025
Current Contact Email	willsonjohnny430@gmail.com [UPDATE: privacy@proaxisolutions.co.za]
Contact Phone	066 213 6607
Physical Address	1 Shantally Close, Milarina Gardens, Durban, KwaZulu-Natal, South Africa

1.2 IO Registration Maintenance

The Information Officer registration must be maintained and updated when:

- Contact details change (especially email address — update with the Information Regulator as soon as the business email is active);
- The Information Officer changes;
- The company's physical address changes.

Action required: Update the IO email address with the Information Regulator from willsonjohnny430@gmail.com to privacy@proaxisolutions.co.za as soon as the business email system is active.

PART 2 — LEGAL DUTIES OF THE INFORMATION OFFICER

The Information Officer of Proaxis Solutions is responsible for the following under POPIA and PAIA [VERIFY: current provisions]:

2.1 POPIA Duties

- ☐ Ensure the company complies with the conditions for lawful processing of personal information;
- ☐ Handle all Data Subject Access Requests (DSARs) and rights requests from data subjects;
- ☐ Deal with enquiries and complaints from the Information Regulator;
- ☐ Work with the Information Regulator to ensure compliance;

- ☐ Develop, implement, monitor, and review the company's POPIA compliance framework;
- ☐ Maintain the POPIA Policy and Privacy Notice (ensure they are current and published);
- ☐ Maintain the Data Processing Register (record of all processing activities);
- ☐ Manage data breach responses, including notification to the Information Regulator and affected data subjects;
- ☐ Maintain the IO Register (log of all requests and incidents);
- ☐ Conduct annual reviews of all POPIA documentation.

2.2 PAIA Duties

- ☐ Maintain and publish the PAIA Section 51 Manual;
 - ☐ Handle all requests for access to company records under PAIA;
 - ☐ Respond to PAIA requests within the prescribed timeframes;
 - ☐ Submit the PAIA Annual Report to the Information Regulator when required [VERIFY: current annual report requirements and deadlines for private bodies];
 - ☐ Keep records of all PAIA requests received and the outcomes.
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PART 3 — DATA SUBJECT ACCESS REQUEST (DSAR) PROCEDURE

A data subject may submit a request to: - Access personal information held about them; - Correct inaccurate information; - Request deletion or destruction of information; - Object to processing.

3.1 Receiving a DSAR

All DSARs must be directed to the Information Officer. They may arrive via: - Email to the IO email address; - Written request to the company postal address; - Via the company website (once a DSAR form is published).

3.2 DSAR Processing Procedure

Step	Action	Timeframe
1	Acknowledge receipt of the DSAR in writing	Within 5 business days
2	Verify the identity of the requestor (request certified ID copy if needed)	Within 5 business days
3	Locate the requested information	As soon as possible
4	Assess whether any grounds for refusal apply	Before response
5	Provide the information or state reasons for refusal in	Within the period prescribed by POPIA

	writing	[VERIFY: current period]
6	Log the request in the IO Register (Section 5 of this pack)	Immediately upon receipt
7	File all documentation related to the request	Upon closure

3.3 Grounds for Refusing a DSAR

A DSAR may be refused on the grounds permitted by POPIA, including (but not limited to) [VERIFY: applicable POPIA provisions]:

- The information does not exist or is not held by Proaxis Solutions;
- Providing the information would disclose personal information of a third party;
- Providing the information would disclose legally privileged communications;
- The request is manifestly unfounded or excessive.

If a DSAR is refused, the IO must provide written reasons referencing the applicable POPIA provision.

3.4 Data Subject Remedies

Inform the requestor that if they are dissatisfied with the outcome, they may lodge a complaint with the Information Regulator of South Africa [VERIFY: current complaint procedure — www.inforegulator.org.za].

PART 4 — PAIA REQUEST PROCEDURE

Any person may request access to records held by Proaxis Solutions under PAIA. The procedure is as follows:

Step	Action	Timeframe
1	Receive PAIA request (Form C or written request)	—
2	Acknowledge receipt in writing	As soon as possible
3	Notify the requestor of any applicable access fee	Within prescribed period
4	Locate the requested records	As soon as possible
5	Assess whether grounds for refusal apply (PAIA Chapter 4)	Before response
6	Grant or refuse access;	Within the period

	notify the requestor in writing with reasons	prescribed by PAIA [VERIFY: currently typically 30 days, extendable by 30 days]
7	Log the request in the IO Register	Immediately upon receipt

PART 5 — IO REGISTER

The Information Officer must maintain a register of all PAIA and POPIA requests and data breach incidents.

5.1 POPIA / DSAR Register

#	Date Received	Requestor Name	Contact	Type of Request	Date Acknowledged	Response Due	Outcome	Date Closed	IO Notes
1	[DATE]	[NAME]	[EMAIL / PHONE]	[DSAR / Correction / Deletion / Objection]	[DATE]	[DATE]	[GRANTED / REFUSED / PARTIAL]	[DATE]	[NOTES]

5.2 PAIA Request Register

#	Date Received	Requestor Name	Contact	Record(s) Requested	Date Acknowledged	Fee Notified	Response Due	Outcome	Date Closed	IO Notes
1	[DATE]	[NAME]	[EMAIL]	[DESCRIPTION]	[DATE]	[Y/N, AMOUNT]	[DATE]	[GRANTED / REFUSED / PARTIAL]	[DATE]	[NOTES]

5.3 Data Breach Incident Register

#	Date Detected	Detected By	Nature of Breach	Data Affected	Subjects Affected	Regulator Notified	Subjects Notified	Remediation Action	IO Sign-Off
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					(estimate)				
1	[DATE]	[NAME E]	[DESCRIPTION ON]	[CATEGORY]	[NUMBER]	[Y/N, DATE]	[Y/N, DATE]	[ACTION]	[INITIALS]

PART 6 — DATA BREACH RESPONSE PROCEDURE

6.1 Immediate Response (Within 24 Hours of Detection)

1. **Contain** — Stop the breach from continuing. Isolate affected systems, devices, or accounts.
2. **Preserve** — Do not delete evidence. Preserve logs, screenshots, and any records of what occurred.
3. **Notify IO** — The person who discovers the breach must notify the Information Officer immediately at 066 213 6607 or willsonjohnny430@gmail.com [UPDATE to privacy@proaxissolutions.co.za].

6.2 Assessment (Within 24–48 Hours)

The IO must determine: - What personal information was involved (categories and sensitivity); - How many data subjects are potentially affected; - What the likely consequences are (identity theft risk, financial harm, reputational harm, etc.); - Whether the breach is ongoing or has been contained.

6.3 Notification to the Information Regulator

The IO must notify the **Information Regulator of South Africa** as soon as reasonably practicable after becoming aware that personal information has been accessed or acquired by an unauthorised person. [VERIFY: current POPIA Section 22 notification requirements, including whether there is a prescribed form and portal for notification — www.inforegulator.org.za]

Information to include in the notification [VERIFY: current prescribed notification content]: - Company name and registration number; - IO name and reference number; - Description of the breach (what happened, when, how); - Categories and approximate number of data subjects affected; - Categories and approximate number of records affected; - Likely consequences of the breach; - Measures taken or proposed to address the breach.

6.4 Notification to Affected Data Subjects

Where the breach is likely to result in harm to data subjects (e.g., identity theft, financial loss, discrimination), the IO must notify the affected data subjects as soon as reasonably practicable. [VERIFY: current POPIA requirements on data subject notification — Section 22.]

The notification must describe the breach in plain language and advise data subjects on steps they can take to protect themselves.

6.5 Post-Breach Review

After the breach is resolved: - Document the incident fully in the Data Breach Register; - Review what caused the breach; - Implement measures to prevent recurrence; - Update security policies as required; - Retain all documentation relating to the breach.

PART 7 — PAIA ANNUAL REPORT

7.1 Current Status

The Information Regulator has issued communication indicating that the PAIA Annual Report submission period is currently active (as of June 2026). The IO must determine:

1. Whether Proaxis Solutions (as a private body) is required to submit a PAIA Annual Report for the current period; [VERIFY: current Information Regulator requirements for private bodies — www.inforegulator.org.za]
2. The specific deadline for submission;
3. The prescribed format and portal for submission.

Action required immediately: Log into the Information Regulator portal and confirm the submission requirement and deadline.

7.2 What the PAIA Annual Report Typically Covers [VERIFY: current requirements]

Section	Content
Company details	Registered name, registration number, IO details
IO registration	Confirmation of registered IO
Requests received	Number and outcome of PAIA requests received during the reporting period
Manual status	Confirmation that a PAIA Section 51 Manual exists and is published
Compliance updates	Any changes to information access procedures

PART 8 — COMPLIANCE CALENDAR

Deadline	Action	Priority
30 June 2026	Commission new B-BBEE EME Sworn Affidavit before current certificate expires (07 July 2026)	CRITICAL
Immediately	Investigate and confirm PAIA Annual Report	CRITICAL

	deadline with the Information Regulator	
Immediately	Investigate SARS TCS PIN — resolve CIT product activation	CRITICAL
Week 1	Publish PAIA Manual on website	CRITICAL
Week 1	Publish POPIA Policy, Privacy Notice on website	CRITICAL
Week 1	Configure business email (info@, privacy@, tenders@ proaxisolutions.co.za)	HIGH
Week 2	Update IO email with Information Regulator	HIGH
Week 2	Optimise CSD profile	HIGH
Week 2	Implement cookie consent banner on website	HIGH
Confirm date	CIPC Annual Return — calculate deadline from incorporation date and calendar	HIGH
June 2027	Annual review of PAIA Manual, POPIA Policy, Privacy Notice, Cookie Policy, Terms of Use	MEDIUM
June 2027	Annual IO Compliance Pack review	MEDIUM
30 June 2027	Renew B-BBEE EME Sworn Affidavit (if applicable for next period)	MEDIUM

PART 9 — INFORMATION REGULATOR CONTACT DETAILS

Field	Detail
Name	Information Regulator of South Africa
Website	www.inforegulator.org.za [VERIFY: current URL]
PAIA Enquiries	[VERIFY: current PAIA contact details from Information Regulator website]
POPIA Enquiries	[VERIFY: current POPIA contact details from Information Regulator website]

Data Breach Notification

[VERIFY: current breach notification portal and contact — www.inforegulator.org.za]

Complaints

[VERIFY: current complaint submission process — www.inforegulator.org.za]

PART 10 — DATA PROCESSING REGISTER (RECORD OF PROCESSING ACTIVITIES)

The IO must maintain a register of all personal information processing activities conducted by Proaxis Solutions.

#	Processing Activity	Personal Information Categories	Purpose	Legal Basis	Data Subjects	Storage Location	Retention Period	Third Party Recipients	Cross-Border Transfer
1	Website contact form	Name, email, company, business details, challenge description	Respond to enquiries and provide service proposals	Consent	Website visitors / prospective clients	Netlify form submissions; Google Drive (if saved)	12 months from last contact	None	Netlify servers (international)
2	Client onboarding	Full personal and business details, billing info	Service delivery and contracting	Contractual necessity	Clients	Google Drive, Notion, company devices	Contract duration + 5 years	None (unless external contractors engaged)	Google / Notion cloud storage (international)
3	Financial records	Names, banking details, invoices	Tax compliance and financial administration	Legal obligation	Clients, suppliers	Company accounting records; SARS	5–7 years	SARS (where required)	Accounting software cloud storage

		e details	stratio n			eFiling			
4	Whats App communications (support)	Name, contact number, support content	Technical support	Legitimate interest / consent	Clients	Whats App (Meta servers)	Duration of support relationship + 12 months	None	International (Meta servers)
5	Email communications	All information in emails received	Business communication and project delivery	Contractual / legitimate interest	Clients, suppliers, enquirers	Email provider (to be confirmed after business email configured)	Per category above	None	Subject to email provider hosting

PART 11 — IO ANNUAL SELF-ASSESSMENT CHECKLIST

Use this checklist annually to assess the IO's compliance status:

POPIA - ☐ POPIA Policy is current, reviewed, and published - ☐ Privacy Notice is current and linked from website - ☐ Cookie Policy is current and accurate - ☐ Data Processing Register is up to date - ☐ DSAR Register is complete with no outstanding requests - ☐ Data breach procedure tested or reviewed - ☐ No uninvestigated data breach incidents - ☐ IO registration details are current with the Information Regulator

PAIA - ☐ PAIA Manual is current and published on website - ☐ PAIA Annual Report submitted (if required) - ☐ PAIA request register is complete

Business Compliance - ☐ B-BBEE certificate / EME affidavit is valid (not expired) - ☐ TCS PIN is active - ☐ CSD profile is up to date - ☐ CIPC annual return is filed

SIGN-OFF

This Information Officer Compliance Pack is adopted by Proaxis Solutions (Pty) Ltd.

Field

Director

Information Officer

IO Reference

Date Adopted

Director Signature

IO Signature

Date

⚠ AI-GENERATED DOCUMENT — This Information Officer Compliance Pack was prepared with AI assistance. It must be reviewed by a qualified attorney before implementation. All statutory references must be verified against current South African law. This document does not constitute legal advice.

*Proaxis Solutions (Pty) Ltd | Reg: 2025/542019/07 | IO Reference: 2025-058837
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